

Your Rights During the Enforcement Stop

If an officer asks your permission to do something, you have a right to say no. However, if you say no and the officer says they are going to do it anyway, you do not have a right to interfere with their actions. For example, an officer may request to search part or all of your vehicle. You have a right to decline that request, but the officer may have the legal authority to search your vehicle under certain circumstances. If you do not want the officer to search your vehicle, you should clearly say that you do not give your permission, but you do not have a right to resist or obstruct the officer if they search your vehicle.

The driver of a stopped vehicle must produce a driver's license, proof of insurance, and vehicle registration when stopped by law enforcement. If a driver does not produce these documents, officers may conduct a limited search for them. An officer may also request the names or identification of passengers. Passengers can decline that request, but under some circumstances the passengers may be required to identify themselves. If passengers do not want to produce their identification, they should clearly say so. Passengers should not interfere with the officer's duties in conducting the traffic stop, and if an officer demands identification, passengers should not interfere with the officer's actions. During a traffic stop, an officer can legally require the driver and all passengers to exit or stay inside the vehicle. If you are told to exit the vehicle or stay inside, you must do so.

In California, only federal law enforcement officers can ask you about your immigration status. California law prohibits state and local officers from asking drivers or passengers about their immigration status. If a California law enforcement officer asks you about your immigration status, you can decline to answer.